

August 24, 2026
Dept. 9
Probate Tentative Rulings

15.	25PR0205	ESTATE OF BENOIT DAVID USTARIZ
FINAL DISTRIBUTION HEARING		

Letters Testamentary were issued on December 1, 2025, granting Petitioner full authority under the Independent Administration of Estates Act.

A Final Corrected Inventory and Appraisal was filed on May 19, 2026. At the time the inventory and appraisal was filed, the change of ownership statement with the county recorder or assessor in each county where the decedent owned real property at the time of death, as provided in section 480 of the California Revenue and Taxation Code, was filed.

Waivers of Account were executed by all of the heirs entitled to distributions under the estate.

Proof of Service of Notice of the hearing on the Petition was filed on July 13, 2026. No one has filed a request for special notice in this proceeding.

The proposed distribution of the estate includes full distribution to Dennis Rogers, Administrator of the Estate of Catherine P. Covell (aka Kay P. St. Paul).

Per Local Rule 10.07.12 Petitions for final distribution must include a report of the following:

1. That no federal or California estate taxes are payable or that they have been paid;
2. That income taxes and all other taxes (e.g. supplemental real property taxes or personal property taxes, if any, have been paid or otherwise provided for.

If estate taxes are payable or paid: 1) the petition shall set forth whether said taxes were prorated pursuant to Probate Code section 20100, et seq., or the provisions of the will; and 2) the petition must reflect whether or not there are non-probate assets includable in the gross estate for estate tax purposes.

Petitioner confirms that no federal or California estate taxes are payable. All California and federal income taxes due and payable by the estate have been paid or are adequately secured. All applicable real and/or personal property taxes due and payable by the estate have been paid.

The Petition requests:

1. The First and Final Report of Petitioner as Executor be settled, allowed, and approved as filed;
2. All the acts and transactions as set forth herein above and disclosed in Petitioner's First and Final Report be confirmed and approved;

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3. Petitioner be authorized and directed to pay Heisler Zaragoza LLP the amount of \$20,740.00 as compensation for ordinary services to the estate;
4. Petitioner be authorized and directed to pay Heisler Zaragoza LLP reimbursement in the amount of \$2,364.86 for costs advanced by Heisler Zaragoza LLP;
5. The Court authorize the transfer of property commonly known as 2.503 acres real property situated in Orange County, described as 2901 RANCHO CANADA DE LOS ALISOS3, located at 24701 Raymond Way, Forest Lake, CA 92630 to Dennis Rogers, Administrator of the Estate of Catherine P. Covell (aka Kay P. St. Paul);
6. Distribution of the estate in Petitioner's hands and any other property of the Decedent or the estate not now known or discovered that may belong to the estate or in which the Decedent or the estate may have any interest be made to the persons entitled to it, be distributed to Dennis Rogers, Administrator of the Estate of Catherine P. Covell;
7. On the filing of receipt, Petitioner be discharged; and
8. **Upon filing of receipts and the Ex Parte Petition for Discharge, Petition may be discharged and released from all liability that may be incurred thereafter.**

TENTATIVE RULING #15:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, AUGUST 23, 2027, IN DEPARTMENT NINE BY WHICH TIME THE COURT EXPECTS RECEIPTS AND AN EX PARTE PETITION FOR FINAL DISCHARGE (JUDICIAL COUNCIL FORM DE-295) TO BE FILED WITH THE COURT. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

IF A PARTY OR PARTIES WISH TO APPEAR BY ZOOM, PLEASE CONTACT THE COURT AT (530) 621-5867 AND MEETING INFORMATION WILL BE PROVIDED.